

PREMIER HEALTHCARE ALLIANCE, L.P.
Data Stewardship Program

PART III

PHYSICAL SAFEGUARDS POLICIES

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PS-1. Limits on Access to Physical Premises

A. Physical Access to Premises

Premier protects its facilities and the equipment therein from unauthorized physical access, tampering and theft. All Premier information processing areas are protected by physical controls appropriate for the size and complexity of the operations therein and the criticality or sensitivity of the systems operated at those locations. Physical access to areas controlled by Premier is restricted only to authorized Personnel that need access to the facilities for legitimate business purposes and authorized visitors.

B. Theft Protection

Premier takes reasonable steps to minimize the risk of theft to equipment such as workstations, communications gear, laptops, etc. To that end, Premier implements reasonable security measures such as locked facilities, rooms and storage areas, controlled access rooms, and monitoring of visitors.

C. Personnel Access Procedures

All facilities shall require key cards and all Personnel are issued a key card to access facilities. If any Personnel fail to produce his or her assigned key card, the receptionist or other Personnel permitting entry to the premises must verify that the person is an authorized Personnel and issue a temporary key card for the day.

D. Non-Personnel Access Procedures

Visitors and other individuals who are not Personnel and who require access to controlled areas are required to provide valid photo identification to the receptionist or to a member of building security prior to entering Premier's premises. All visitors are issued and may be required to display visitor badges. Visitors are not permitted to enter or move around within secured areas without an appropriate Personnel supervising the visitor. When a visitor arrives, a member or Personnel must be called to the front desk to meet and escort the visitor. Visitors must remain in the lobby until their designated escort arrives. Visitors are supervised at all times by authorized Personnel with a validly issued key card.

E. Repairs to Security Systems

Records of repairs and modifications to the security access components of a facility must be maintained and will be kept by the appropriate Privacy Officer, Chief Security Officer or designee according to the Premier's record retention policy.

PS-2. Limits on Access to Physical Records with Protected Data

A. Safeguarding Records on Premises

When on Premier's premises, Personnel are required to take reasonable and appropriate precautions to protect Records containing Protected Data. For example, Personnel must not leave Records containing Protected Data at copy stations, in conference rooms, in the hallway, or in other common areas.

B. Business Travel

When traveling away from the workplace, Personnel who carry work-related Records containing Protected Data, including electronic devices such as thumb drives, PDAs and the like, are required to take reasonable steps to safeguard such Records and devices. For example, such Personnel must ensure that Records are physically secured in a manner that prevents theft or unauthorized access to the Records. Such Personnel must also ensure that all portable devices are password-protected and/or encrypted sufficient to meet the requirements of these Policies.

C. Working Remotely

All Personnel who want to work remotely must first seek approval for remote access privileges from the Chief Security Officer or other designated person in charge of managing remote working. All Personnel working remotely must be authorized to work remotely prior to undertaking any remote work and all Personnel must comply with all Premier policies during such work.

Under the direction of the appropriate Privacy Officer, Premier establishes documented procedures to ensure that Premier meets the requirements of the Policies in the context of remote working. The documented procedures should ensure that all remote working arrangements meet the minimum safeguards articulated by this Program. The documented procedures should also ensure that remote access devices used by Personnel in remote locations are subject to and equipped with physical and technical safeguards equivalent to those employed for devices in the workplace.

As a condition of receiving remote access privileges, Personnel who use their own computers or other devices as remote access devices, agree to make available such remote access devices upon Premier's request, for data removal by Premier IT Personnel, or agree to perform such removal steps as Premier communicates to them and to certify successful completion of such steps.

D. Workstation Control

Premier requires Personnel to log off or physically secure media devices when such devices are unattended; log off or lock computers, lock file cabinets and office doors at the end of the day or when the Personnel will be absent from his or her office or workstation for a prolonged period (e.g., an hour or more) during the workday; and return Records containing Protected Data to locked areas when not actively using them.

E. Inventory

All equipment containing Protected Data is marked with an asset tag. Premier records the movement of such equipment and ensures that it is maintained in accordance with Premier's Record Retention Policy.

PS-3. Transfers of Protected Data and Protection of Protected Data in Transit

A. Intergroup Data Transfers

In connection with this Program as part of Premier's overall effort to ensure lawful data transfers under Applicable Laws, Premier's legal entities conduct its lawful data transfers by using Premier approved corporate technology and contractual requirements for data transfers.

B. Transporting or Transmitting Records Containing Protected Data

Transport of hard copy Records that contain Protected Data must be managed in the most confidential and secure manner reasonably available. Records containing Protected Data must be mailed using a method of delivery that allows for the tracking of information and requires a signature upon delivery or receipt unless otherwise authorized in writing by the intended recipient. Additional care should be taken when transmitting Records containing Protected Data via fax or their transmission over public networks, such as the Internet.

C. Transporting Portable Media

When mailing or otherwise delivering portable media containing Protected Data, secure methods of mail that allow for tracking and require a signature must be used.

All portable media devices, such as USB drives, external hard drives, or CDs/DVDs, containing Sensitive Personal Information must be encrypted in accordance with the guidance referenced by HHS and published by the National Institute of Standards and Technology before being mailed or otherwise delivered offsite. It is anticipated that these encryption requirements will change from time to time.

D. E-mail

All e-mails containing Sensitive Personal Information must be encrypted in accordance with the guidance referenced by HHS and published by the National Institute of Standards and Technology. It is anticipated that these encryption requirements will change from time to time. Personnel must not send unencrypted emails containing Sensitive Personal Information. If emails contain attachments with Sensitive Personal Information, the attachments must be encrypted for transmission.

E. Permitted Disclosures to Third Parties

Premier and its Personnel may disclose Protected Data that is not PHI to third parties for purposes of conducting legitimate business on behalf of Premier or Premier clients and for purposes of complying with Applicable Law, provided, however, that Premier and its Personnel first obtain reasonable assurances from the person to whom such information is to be disclosed that it will and be used or further disclosed only as required by law or for the purpose for which it was disclosed to the person, that appropriate protection will be applied to such information, and the person is required to notify Premier of any instances of which the person is aware in which the confidentiality of the information may have been Accessed inappropriately. Premier and its Personnel may disclose Protected Health Information only as permitted or required by

Part V, “Protected Health Information Policies” and Applicable Law, including without limitation HIPAA.

PS-4. Disposal of Equipment and Protected Data

A. Hard Copies

Premier disposes of all paper-based (hard copy) output of Protected Data either by shredding or by placing documents in designated secure containers for pickup by authorized document management personnel.

B. Disposal of Electronic Media

For purposes of this section, “**Electronic Media**” means any device or storage or transmission tool having electrical, digital, magnetic, wireless, optical, electromagnetic or similar capabilities.

Any Electronic Media containing, or that at any time contained Protected Data, is overwritten by Premier with approved software or physically destroyed by such mechanisms as degaussing before the media leaves Premier control. Due to the wide availability of programs that restore files which were “accidentally” deleted, Personnel must not attempt to erase Protected Data without the assistance of Premier IT.

Electronic Media are destroyed or sanitized in accordance with the procedures set forth in National Institute of Standards and Technology Special Publication 800-88 (Guidelines for Media Sanitization) prior to disposal. To the extent that Premier employs Vendors to manage this process, Premier ensures that these requirements are contained in written agreements binding on such Vendors and that Premier retains the right to audit such Vendors to ensure their compliance with these proper disposal techniques. Electronic Media where the Protected Data has been properly encrypted and where the decryption key is not stored on the media, does not require any special process for destruction.

C. Retiring Premier Computer Equipment

Retired equipment that contained Protected Data at any time may not be resold, donated or otherwise transferred to a third party except by Premier IT in accordance with these Policies.

Premier periodically replaces computer equipment, including desktops, laptops, hard drives, printers and peripherals that contain or otherwise came in contact with Protected Data. Upon replacement, Premier IT removes identifying stickers or tags from the equipment being retired and ensures that all hard drives and other media containing Protected Data or Protected Data are handled in accordance with these Policies.

The equipment is then placed in a designated secure area for removal by a qualified subcontractor contracted for such purpose. When the equipment enters the possession or control of the subcontractor, the subcontractor is required to inspect the equipment to confirm that all Protected Data has been completely deleted in an unrecoverable manner and all Premier identification has been removed prior to disposal to a salvage Premier. The subcontractor’s service contract also must provide that the subcontractor will comply with this Policy that retired equipment may not be resold.

D. Litigation Holds

Premier's procedures regarding the disposal of Protected Data are subject to Premier's policies governing litigation holds.

PS-5. Government Investigations

A. Commitment to Cooperation. Premier will adhere to its legal obligations with respect to government investigations. Premier cooperates with government investigations in the most accurate and truthful manner possible in accordance with this Policy and its ethical and compliance obligations.

B. Call for Assistance Immediately; Do Not Authorize Access to Property.

1. Internal Permission. If, at any time, a person contacts a member of Personnel and claims that he or she represents a government or investigative agency, the member of Personnel must call Premier's legal counsel for assistance immediately.

2. Access Unauthorized. Personnel may not authorize access to Premier premises or property except when presented with a valid search warrant or its local law equivalent. If the person does not have a valid search warrant or its local law equivalent, Personnel will direct any person requesting documents, information or access to Premier's legal counsel. Any documents, computer systems or other tangible objects and stored information that are Premier's property may only be produced to an investigator through Premier's legal counsel.

C. Regulatory Inspections. Generally, a government representative can only conduct a search if he has a legally valid search warrant. The only exception to this is under limited circumstances in which the search is an authorized regulatory inspection carried out pursuant to local law.

1. HIPAA. With respect to data security and privacy in the U.S., the U.S. Department of Health and Human Services (HHS) is authorized to audit Covered Entities and Business Associates to verify compliance with the Privacy Standards and Security Standards. If HHS requests an opportunity to inspect records under such authority, Personnel will cooperate and do so in a courteous and respectful manner. When responding to their request, Personnel must ask for sufficient time to contact the Premier's legal counsel and must have Premier's legal counsel speak with the requesting person and make the arrangements to respond to the request.

2. Unannounced Inspections. For all other unannounced regulatory inspections, Personnel should immediately contact Premier's legal counsel and local office head, and have Premier's legal counsel or the local office head speak with the person conducting the inspection, and do nothing to obstruct or interfere with an authorized regulatory inspection carried out pursuant to local law.

D. Procedure for Searches Conducted With a Search Warrant. Unlike many regulatory inspections that are discussed in advance or that are conducted in a spirit of mutual cooperation, search warrants are not. Therefore, if a valid search warrant is served upon Premier, Personnel should contact the Premier's legal counsel and the local office head immediately and do nothing to obstruct or interfere with the search.

PS-6. Vendor Selection and Data Protection

Premier maintains written Guidelines that set forth the procedures for engaging a Vendor. For purposes of this policy, a “**Vendor**” is a third party service provider to Premier of services that may involve processing, handling, or storing Protected Data. The current Guidelines can be found in the Appendix A “Premier Vendor Contracting Standards”. These Guidelines are designed to safeguard Protected Data and meet Premier’s obligations under Applicable Law.

Any Personnel who engage a Vendor to provide services on behalf of Premier or a Premier customer must follow the Guidelines.

If Premier is entering into a Vendor contract in its capacity as a Business Associate on behalf of a HIPAA Covered Entity, Premier must enter into an appropriate Downstream Subcontractor Agreement as set forth in Part V of this Program, “Protected Health Information Policies”). If Premier is entering into a Vendor contract in its capacity as a Covered Entity, Premier must enter into an appropriate Business Associate Agreement as set forth in Part V of this Program, “Protected Health Information Policies”.